



POWER OF ATTORNEY & CONTINGENCY FEE AGREEMENT

This agreement is between _____
"Client" and **TURNBULL, MOAK & PENDERGRASS, LLC** herein "TMP". In consideration of the mutual promises herein contained, the parties hereto agree as follows:

1. Purpose & Scope of Representation. The client hereby retains and employs TMP to investigate and recover all damages and compensation to which the Client, and those the Client represents, may be entitled to as a result of injuries suffered by _____ on/around _____.

2. Power of Attorney. TMP is hereby granted a Power of Attorney so that they have full authority to prepare, sign, and file all legal instruments, pleadings, authorizations, and papers as shall be necessary in the representation of Client, including reducing to possession any and all monies and other things of value due to Client under this claim as fully as Client could do in person.

3. Attorneys' Fees. The fee to be paid to Attorney will be a percentage of the "gross recovery," depending on the stage at which a final settlement by Client is reached or judgment is reached. The term "gross recovery" means: (1) the total of any and all amounts received by settlement, medical payment provisions, award, or judgment, including any award of attorney's fees, costs, interest, sanctions, workers' compensation that is part of the settlement, or any other proceeds that are promised to or received by Client for which Attorney has applied legal services. Attorney's fee shall be calculated as follows:

- (i) If recovery occurs before the defendants file an answer to the complaint or demand appointment of arbitrators, the attorneys' fee will be: 33 1/3% of any recovery up to \$1 million; 30% of any portion of the recovery between \$1 million and \$2 million; and 20% of any portion of the recovery exceeding \$2 million.

OR

- (ii) If recovery occurs after the defendants file an answer to the complaint or demand appointment of arbitrators, or after the time period for this action expires, the attorneys' fee will be: 40% of any recovery up to \$1 million; 30% of any portion of the recovery between \$1 million and \$2 million; and 20% of any portion of the recovery exceeding \$2 million.

OR

- (iii) If all defendants admit liability at the time of filing their answers and request a trial only on damages, the attorneys' fee will be: 33 1/3% of any recovery up to \$1 million; 20% of any portion of the recovery between \$1 million and \$2 million; and 15% of any portion of the recovery exceeding \$2 million.

In addition to the fees noted above, an additional 5% of any gross recovery will be charged as fees if an appellate proceeding is filed or post-judgment relief or action is required for recovery on the judgment, and the proceeding or action is handled by Law Firm. If the proceeding or action is handled by outside counsel, then the fees and costs owed outside counsel will be subject to a separate agreement between outside counsel and Clients.

In the event a court awards attorneys' fees against the opposing side, the fees paid by the opposing side are included as part of the total amount recovered by Clients for purpose of calculating the contingency fee to be paid by Clients.

This employment of Law Firm is on a contingent fee basis and unless a recovery is made there will be no obligation by Clients to pay attorneys' fees or costs.

4. Expenses. Client agrees that TMP is to be repaid and reimbursed for **all** costs and expenses— all expenses will be deducted after the deduction of attorneys' fees. TMP agrees to provide Client with an itemized report reflecting all costs and expenses. Costs and expenses may include the following: court filing fees, service fees, expert witness fees, expenses for other testimony including depositions, expenses for other evidence including witness fees, exhibit preparation fees, photographs, photocopy, document reproduction costs, computerized research, investigators' fees, costs of briefs and transcripts on appeal, facsimile, postage, and travel expenses, as well as any other expenses incurred in this representation. Certain expenses may benefit multiple Plaintiffs; those "common benefit expenses" will be equitably allocated to all Plaintiffs who benefit from the expenses. TMP charges \$300.00 as an initiating set up and processing fee on all cases which is recoverable at the close of the file. TMP reserves the right to recover interest expenses incurred on advancement of case costs as allowable under the laws of the state wherein the Client resides.

5. Cooperation of Client. Client understands the need to actively participate in the Client's case and agrees to comply with the requests of TMP in preparation of Client's case. Client agrees to update TMP concerning any change in circumstances including but not limited to the following: changes of address, phone number and/or employment, marriage, divorce, death. Client understands that Client's failure to actively participate in Client's case, or TMP's inability to contact Client could delay or adversely affect Client's case or bar certain claims if deadlines are missed as a result of TMP's inability to locate Client.

6. Disclosure by Client. Client agrees to inform TMP of any: (1) bankruptcy or Debtor's Court proceedings; (2) lien or subrogation interest; or (3) receipt of Medicaid or SSI benefits. Additionally, Client understands that Medicaid, SSI and other financially need- based benefits could be adversely affected by receipt of settlement proceeds from this lawsuit. Furthermore, if Client is serving in the capacity as personal representative of an estate, Client represents and agrees as follows: (1) Client has been legally and validly appointed; (2) the estate has been properly opened and remains open; (3) Client shall not undertake to close the estate without written authorization from Attorneys; and, (4) Client will immediately notify Attorneys of any changes in the status of the estate.

7. Statute of Limitation Waiver. Legal claims must be brought within a limited period of time or legal rights can be lost forever. The time period for bringing a legal claim is called the Statute of Limitation. TMP will not file or take action on Client's behalf without adequate time for investigation. Therefore, Client understands, agrees, and consents that TMP shall have no responsibility to file a claim or to take any action to comply with any Statute of Limitations expiring within 90 days of the date this

contract is signed. If a Client's statute of limitation expires within 90 days of execution, Client's claim may not be filed within the statutory period, and therefore, forever barred. Client releases TMP from any liability and responsibility for failure to file a lawsuit during the 90 days following the execution of this contract even if the statute of limitations expires.

8. Settlement. TMP is authorized and empowered to act as Client's negotiator in any and all settlement negotiations but WILL NOT enter into a settlement agreement without Client's approval. However, Client agrees that TMP is permitted to withdraw and terminate representation in the event that Client rejects a recommended reasonable settlement offer. Client agrees that Client's inconvenience or inability in finding replacement does not constitute prejudice. If TMP withdraws under these circumstances, TMP will be entitled to fair compensation for the work done by them and to reimbursement of expenses advanced by them before withdrawing, in the event of a recovery by Client.

9. Association of Other Attorneys. Client agrees that any of TMP attorneys may assist in the work on Client's case. TMP may associate outside attorneys in the representation of Client, or may elect to transfer Client's case to another attorney entirely if it is in Client's best interest. Association of other attorneys will not change the terms of this agreement. Additionally, TMP may retain third party contractors to negotiate medical liens and/or subrogation interests if TMP deems it, in TMP's sole opinion, to be in the best interest of the Client.

10. Sharing Information. Client authorizes the release of this agreement, case status, and other information to accountants, bookkeepers, legal consultants, marketing companies, and others who assist in furthering or administrating the law-practice business of the law firms.

11. Withdrawal. In the event the client(s) dismisses the law firm, the client(s) agrees to pay the law firm the minimum administrative cost of \$300.00, or the reasonable value of the services performed, whichever is greater. Value of services will be based on a rate of \$300.00 per hour. If the dismissal is after an offer of settlement has been made, the client(s) agrees to pay the law firm, within thirty (30) days of the date of dismissal, 33.33% of the last offer made. In the alternative, the client(s) agree to grant the law firm a lien on the settlement proceeds and pay the law firm the agreed upon fee percentage described in paragraph three (3) of this agreement of the last offer made prior to the law firm's dismissal due upon settlement or resolution of client(s) case.

12. Severance Clause. If any provision of this contract is held or deemed to be invalid, the remaining provisions remain valid and enforceable.

13. Choice of Law. This contract will be interpreted pursuant to the laws of the State of Alabama.

Client Signature



Turnbull, Moak & Pendergrass, LLC

Date: _____

Date: _____



**Turnbull
Moak
Pendergrass**
LAW FIRM

**HIPAA & HITECH ACT-COMPLIANT
AUTHORIZATION FOR RELEASE OF INFORMATION**

(Pursuant to 45 CFR 164.508; 42 U.S.C.A §17935(e)(1); and 45 CFR 64.524(c)(4)(i))

TO:

Healthcare Provider: _____

Address: _____

REGARDING:

Patient: _____

Patient Other Names: _____

Date of Birth: _____

City, State, Zip: _____ SS#: _____

SPECIFIC REQUESTOR:

Turnbull, Moak & Pendergrass, PC
2501 20th Place South, Suite 425
Homewood, AL 35223
Phone: 1-205-831-5040
Fax: 1-205-848-6300

INFORMATION TO BE RELEASED:

- | | |
|--|---|
| ☐ All Medical Records in Entirety | ☐ All Laboratory & Test Result Records |
| ☐ History & Physical Records | ☐ All Radiology Records |
| ☐ All Medication/Pharmacy Records | ☐ All Autopsy Records |
| ☐ All Films, Scans, Photos & Videos | ☐ All Billing Records/Information |
| ☐ All Pathology/Cytology Records | ☐ All Product Implant Labels |
| ☐ All Doctor/Nurse Notes | ☐ All Insurance Records/Information |
| ☐ All Admission/Discharge Records | ☐ All Operative Reports |
| ☐ Other: _____ | |

Dates of Service: _____

Purpose of Disclosure: Review and evaluation in connection with a legal claim.

Understandings:

- I understand that this consent may be revoked in writing at any time, with the exception and to the extent that disclosure of information has already occurred prior to the receipt of revocation by the above-named provider. The information authorized for release may include records which indicate the presence of a communicable or non-communicable disease.
- If written revocation is not received, authorization will be considered valid for a period of time not to exceed 90 days from the date of signing. To initiate revocation of this authorization, direct all correspondence to the "Specific Requestor" above.
- I understand that, pursuant to 42 C.F.R. 2.31, this consent is to include disclosure of: (Please initial in spaces next to highlighted area.)

_____ <u>Alcohol and/or Drug Abuse Records</u>	_____ <u>Psychiatric Records</u>
_____ <u>Sexually Transmitted Disease Information</u>	_____ <u>HIV / AIDS Information</u>
- I understand that a photocopy of this authorization is to be considered valid as the original.
- I understand that the information used or disclosed pursuant to this authorization may be subject to re-disclosure by the recipient and may no longer be protected by Federal Law (45 C.F.R. 164.508).
- I understand that my medical providers may not condition treatment, payment, eligibility, and enrollment on whether I sign this authorization.

X: _____

Date: _____

Signature of Patient (or Personal Representative)

Printed Name of Patient (or Personal Representative)

Date: _____

TO: _____

RE: **HITECH MEDICAL RECORDS REQUEST**

Patient Name: _____

Date of Birth: _____

Date(s) of Service: _____

Social Security Number: _____

Dear Sir or Madam:

I am a patient who received care and treatment at your facility. Within 30 days, as required by federal law¹, please provide me with:

1. **Certified copy** of my medical records from _____ to present;
2. **Certified copy** of my medical bills from _____ to present;
3. **All** images, scans, and test results from _____ to present;

Please note: I am specifically requesting that you certify the records and provide them in an electronic PDF format or on a CD or DVD². Please send my records to my personal representative³ at:

Turnbull, Moak & Pendergrass, PC
2501 20th Place South, Suite 425
Homewood, AL 35223
Telephone: (205) 831-5040
Fax: (205) 848-6300
Email: _____

I have designated Turnbull, Moak & Pendergrass, PC as my personal representative under 45 CFR 160.103 for the purpose of disclosure of my personal health information. Because they stand in my shoes for this request, my attorney will pay the HITECH charges for these records and will pre-authorize any amount below \$25.00. As you know, HITECH limits the cost of obtaining the records to the actual labor costs for reproducing them in the requested electronic format, the actual cost of the portable media (CD or DVD), and postage. Turnbull, Moak & Pendergrass, PC will pay a certification charge pursuant to

¹ 45 CFR § 164.524(b)(2)(i)

² 45 CFR § 164.524(c)(2)(ii) and Fed. Reg. Vol. 78 (12) Jan. 25, 2013, page 5636

³ 42 U.S.C. § 17935(c)(1) and 45 CFR 164.524(c)(3)(ii)

applicable law, but not a retrieval fee” or “basic fee” because that is specifically exempted by the Department.

Please note that a third-party HIPAA authorization is not required to release my records in this manner, but I am providing you one anyway so that you may communicate with Turnbull, Moak & Pendergrass, PC in case you need to coordinate delivery with them or have questions about the federal law cited in this letter.

Thank you very much for your cooperation.

Sincerely,

Client Signature

Client Print Name